

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

STEVEN RIVERA and JABAR HICKS,

Plaintiffs,

-against-

Index No.: 22195/2014E

CITY OF NEW YORK, POLICE OFFICER

ALEX CLAUDIO and POLICE OFFICERS

JOHN DOES, individually and in their official

capacities,

Defendants.

CITY OF NEW YORK DEPT.
CLERK OF SUPREME COURT
2014 MAY 22 PM 3:11

**NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING
SUPREME COURT CASES**

PLEASE TAKE NOTICE that plaintiffs in the case captioned above intends that this matter proceed as an electronically filed-case in the New York State Courts Electronic Filing System ("NYSCEF") in accordance with the procedures therefore, set forth in Uniform Rule 202.5-b and described below. Under that Rule, filing and service of papers by electronic means cannot be made by a party nor can electronic service be made upon a party unless that party has consented to use of the System for the case in question. Within ten days after service of this Notice, each party serve should indicate whether or not it consents to electronic filing and service through NYSCEF for this case. (See Instruction #2 below.)

General Information

Electronic filing offers significant benefits for attorneys and litigants, permitting documents to be filed with the County Clerk and the court and served, between or among consenting parties, by posting the documents on the NYSCEF Website, which can be done at

any time of the day or night on any day of the week. There is no fee to use the NYSCEF System, whether for filing, service, or consultation of the electronic docket, nor is there a charge to print documents from the docket. Normal filing fees must be paid, but this can be done by credit card or debit card on-line. For additional procedures and information, see Uniform Rule 202.5-b, any e-filing protocol that may have been promulgated by the court in question, and the NYSCEF Website at 111.nycourts.gov/efile.

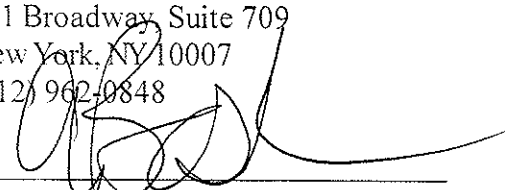
Instructions

1. Service of this Notice constitutes consent to e-filing and a statement of intent by the undersigned to use the NYSCEF System in this case. When an action or proceeding is being commenced through the NYSCEF System, this Notice must accompany service of the initiating papers.
2. **Within ten days after service of this Notice**, the party served should consent to e-filing either: (i) by filing with the court and serving on all parties of record a consent to e-filing, or (ii) if the party or attorney of record is an authorized e-filing user, by filing the consent electronically in the manner provide at the NYSCEF site. If one party or some but fewer than all parties consent, NYSCEF may be used by and between or among consenting parties.
3. Each participating attorney, unless already registered, or self-represented party must **PROMPTLY** complete a Filing User Registration form (see the “Forms” section of the Website) and submit it to the NYSCEF Resource Center (efile@courts.state.ny.us) in order to obtain the confidential Filing User Identification Number and Password necessary to use the system.
4. For additional information about NYSCEF, see the *User’s Manual and Frequently Asked Questions* on the Website, or contact the court in question or the NYSCEF Resource Center (at 646-386-3033 or efile@courts.state.ny.us).

Dated: New York, New York
May 22, 2014

FISHER, BYRIALSEN & KREIZER, PLLC
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

By:



ALISSA BOSHACK
Email: Boshnack@FBKLegal.com

To:

City of New York
100 Church Street
New York, NY 10007

Police Officer Alex Claudio
48th Precinct
450 Cross Bronx Expressway
Bronx, NY 10457-7401

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

STEVEN RIVERA AND JABAR HICKS,

Index No.:

Plaintiff.

Plaintiff designates BRONX COUNTY as
the place of Trial.

-against-

The basis of venue is: CPLR § 504(3);

Location of Incident and Plaintiffs'

Residences

CITY OF NEW YORK, POLICE OFFICER

ALEX CLAUDIO, and POLICE OFFICERS

JOHN DOES, individually and in their official
capacities.

SUMMONS

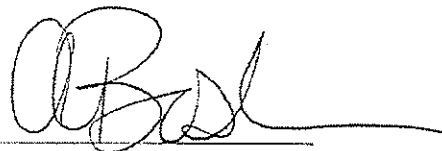
Defendant.

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear to answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

Dated: New York, New York

May 15, 2014



Alissa Boshnack, Esq.
Fisher, Byrjalsen & Kreizer, PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

CITY OF NEW YORK DEPT.
CLERK OF COUNTY CLERK
2014 MAY 22 PM 3:11

Defendants' Addresses:

City of New York
100 Church Street
New York, NY 10007

Police Officer Alex Caludio
48th Precinct
450 Cross Bronx Expressway
Bronx, NY, 10457-7401

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

STEVEN RIVERA and JABAR HICKS.

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER ALEX CLAUDIO, and POLICE
OFFICERS JOHN DOES, individually and in their official capacities,

Defendants.

SUMMONS

FISHER, BYRIALSEN & KREIZER, PLLC
Attorneys for: Plaintiffs
STEVEN RIVERA and JABAR HICKS
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

Service of a copy of the within is hereby admitted

Dated:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

STEVEN RIVERA and JABAR HICKS,

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
ALEX CLAUDIO, and POLICE OFFICERS
JOHN DOES, individually and in their official
capacities.

Defendants.

Plaintiffs, STEVEN RIVERA and JABAR HICKS, by and through their
attorneys, **Fisher, Byrialsen & Kreizer, PLLC**, complaining of the defendants herein,
respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages, and
attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, for the wrongful acts of
Defendants THE CITY OF NEW YORK and POLICE OFFICER ALEX CLAUDIO, POLICE
OFFICER JOHN DOES, as Officers of the New York City Police Department, acting under
color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the
Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1985 and 1988; by the United States
Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws
and Constitution of the State of New York.

2014 MAY 22 PM 3:11
CITY OF NEW YORK
OFFICE OF THE CLERK
COUNTY OF BRONX

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

VENUE

3. The basis of venue is the place of the occurrence.

NOTICE OF CLAIM

4. Plaintiff Steven Rivera filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

5. Plaintiff Jabar Hicks filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

6. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

PARTIES

7. At all times relevant hereto Plaintiff Steven Rivera was and is a citizen of the United States and was residing in the Bronx, New York at the time of the incident.

8. At all times relevant hereto Plaintiff Jabar Hicks was and is a citizen of the United

States and was residing in the Bronx, New York at the time of the incident.

9. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

10. At all times relevant to this action, Defendants Police Officer Alex Claudio and Police Officers John Does are and were police officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

11. At all times relevant hereto and in all their actions described herein, Defendants, Police Officer Alex Claudio and Police Officers John Does were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

12. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

13. On February 16, 2013, at approximately 3:30 a.m., Plaintiffs were in a cab and requested that the cab driver make two stops to drop them off.

14. In response, the cab driver ordered the plaintiffs out of the cab and refused to bring the plaintiffs to the requested destinations.

15. Plaintiffs exited the cab and walked to the subway at West Farms Square in the Bronx, NY.

16. The plaintiffs were then approached by the cab driver and 4-5 police officers.

17. Mr. Rivera was immediately thrown to the ground by the officers and handcuffed.

18. Mr. Hicks was also thrown to the ground by the officers and handcuffed.

19. Plaintiffs were transported to the police precinct in a police vehicle.

20. While the plaintiffs were being transported to the precinct, Mr. Hicks asked why they were arrested.

21. In lieu of a response to Mr. Hicks' question, the officers sprayed both plaintiffs in the face with mace and punched both plaintiffs about their heads and bodies while they were in the police vehicle.

22. Plaintiffs were each placed in separate cells at the precinct.

23. While Plaintiff Rivera was in his cell, one of the police officers entered his cell and told him to put his hands against the wall.

24. Mr. Rivera complied with the request and placed his hands against the wall.

25. The officer proceeded to smash Mr. Rivera's head into the cement wall, which caused a laceration in his head that began to bleed profusely.

26. While Mr. Hicks was in his cell, he fainted.

27. After he fainted, Mr. Hicks requested medical treatment.

28. The officers refused to provide Mr. Hicks with medical treatment. Instead the

officers violently shackled him to the bench in the cell.

29. Mr. Rivera was transported to St. Barnabas Hospital for emergency medical attention as a result of the profuse bleeding from his head.

30. The radiology report from St. Barnabas revealed Mr. Rivera suffered soft tissue swelling overlying the right frontal bone and a 3 cm laceration over his forehead, which required stitches.

31. Mr. Rivera was then transported back to the precinct after his medical treatment was complete.

32. Mr. Hicks was eventually taken to Central Booking where he was detained until he was arraigned and released on his own recognizance.

33. Mr. Rivera was eventually taken to Central Booking where he was detained until he was arraigned and bail was set.

34. Mr. Rivera was released on bail on February 20, 2013.

35. After Mr. Hicks was released on his own recognizance he was taken by ambulance to Bronx Lebanon Hospital for medical treatment.

36. Mr. Hicks was given a sling to treat the wrist pain he suffered from the position in which he was handcuffed and was diagnosed with a contusion to his left brow.

37. The criminal charges against Mr. Hicks pertaining to docket 2013BX009699 were dismissed and sealed.

38. The criminal charges against Mr. Rivera pertaining to docket 2013BX009698 were dismissed and sealed.

39. Within ninety (90) days of the incident, a Notice of Claim on behalf of Mr. Hicks

was served upon NYC.

40. Within ninety (90) days of the incident, a Notice of Claim on behalf of Mr. Rivera was served upon NYC.

41. At least thirty (30) days have elapsed since said demands and/or claims upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

42. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

43. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

44. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

45. All of the aforementioned acts deprived Plaintiffs of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

46. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

47. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of

said department.

48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

49. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. §1983; and by the laws and Constitution of the State of New York, for which the Defendants are individually and jointly liable.

**SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. §1983**

50. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

51. The degree of force used by Defendants was excessive, unreasonable, and unwarranted.

52. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

53. As a result of the excessive force and brutality, Plaintiff Rivera sustained substantial pain and injury to his face, a laceration to his face, substantial pain and injury to his head and body.

54. As a result of the excessive force and brutality, Plaintiff Hicks sustained substantial pain and injury to his face and substantial pain and injury to his wrist, head and body.

55. Plaintiffs both also sustained endured serious emotional and psychological distress.

THIRD CLAIM FOR RELIEF:
ASSAULT AND BATTERY

56. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

57. By the aforementioned actions, the Defendants did inflict assault and battery upon both Plaintiffs. The acts and conduct of the Defendant Police Officers were the direct and proximate cause of injury and damage to the Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

58. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific bodily injury, pain and suffering, great humiliation, mental anguish, costs, and expenses and were otherwise damaged and injured.

59. All of the aforementioned acts of the Defendants constituted assault and battery under the laws of the State of New York and the Defendants are liable said damage.

FOURTH CLAIM FOR RELIEF:
FALSE ARREST

60. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

61. As a result of Defendants' aforementioned conduct, Plaintiffs were subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

62. As a result of their false arrest, Plaintiffs were subjected to humiliation, mental

anguish, ridicule, and disgrace and was deprived of their liberty. Plaintiffs were discredited in the minds of many members of the community.

63. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage.

**FIFTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT**

64. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

65. As a result of their false imprisonment, Plaintiffs were subjected to humiliation, ridicule, mental anguish and disgrace and was deprived of their liberty. Plaintiffs were discredited in the minds of many members of the community.

66. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage.

**SIXTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

67. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

68. Defendant police officers engaged in extreme and outrageous conduct beyond all possible bounds of decency when they beat, harassed and threatened the Plaintiffs.

69. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon the Plaintiffs.

70. The Defendant officers' outrageous conduct did inflict severe distress upon Plaintiffs, which caused Plaintiffs to suffer anxiety and mental anguish.

71. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage.

**SEVENTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION**

72. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

73. By the actions described above the defendants maliciously and without probable cause, prosecuted the Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiffs and violated their statutory and common law right as guaranteed by the laws and constitution of the State of New York.

74. As a result of the foregoing, Plaintiffs were deprived of his liberty, suffered great humiliation, anguish, costs and expenses and was otherwise damaged and injured.

**EIGHTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY**

75. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

76. The acts complained of herein were carried out by the Defendant officers in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said departments.

77. Prior to February 16, 2013, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiff's rights.

78. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

79. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by persons in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

80. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff.

81. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

83. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by

supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

84. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs.

85. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of Plaintiffs' constitutional rights.

86. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

87. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of their civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon them; and
- e. To receive equal protection under the law.

**NINTH CLAIM FOR RELIEF:
CONSPIRACY TO INTERFERE WITH CIVIL RIGHTS
UNDER 42 U.S.C. § 1983, 1985, 1986**

88. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

89. All the defendants, acting with each other individually and on behalf of and under the auspices and control of the City, and under color of law, conspired to injure plaintiffs in his person and property and deprive plaintiff of their First, Fourth, Fifth and Fourteenth Amendment rights. The defendants jointly caused such deprivation of rights by acting in concert to disseminate false information concerning the plaintiffs and by disseminating false information that lacked any reasonable basis or probable cause to support it that the plaintiffs committed a crime, and/or to charge them with a crime, and/or to arrest them.

90. The defendants further deprived the plaintiffs of their due process rights specifically by conspiring to and assisting in the arrest of the plaintiffs without probable cause and participating in the prosecution of plaintiffs; by denying the plaintiffs their First, Fourth, Fifth and Fourteenth Amendment rights via a conspiracy to deprive the plaintiffs of their liberty and taking their property without due process and compensation; conspiring together to cover up the misconduct they committed; and preventing the plaintiffs from being compensated for their wrongful arrest, for the loss of their constitutional rights, the loss of their job and for the emotional harm they incurred.

91. The aforesaid actions by the defendant police officers were done pursuant to an official municipal policy or custom of the city and state, which policy involved the indiscriminate detention, interrogation, intimidation, denial of medical attention, excessive force

and prosecution of individuals who were not engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

92. The defendants' failure to stop these wrongful acts and actions constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

93. The defendants knew or should have known that the misconduct and false and fabricated accusations and/or charges against plaintiffs were violative of his First, Fourth, Fifth and Fourteenth Amendment rights to due process and equal protection, and were tantamount to unequal protection under the law, in violation of the plaintiff's fundamental rights under the Constitution.

94. Said defendants had the power to prevent the continued due process violations against the plaintiff, yet had failed to prevent the dissemination of false information and/or to dismiss the fabricated accusations and charges against plaintiffs, and/or to protect the plaintiffs from the unwarranted and potential harm and penalties of said charges.

95. Defendants herein, their agents, servants and employees, motivated in part by racial and/or ethnic animus, conspired to deprive plaintiffs of their federal civil and constitutional rights, in violation of 42 U.S.C. § 1985 and the laws and Constitution of the State of New York

96. All of the aforementioned acts of Defendants constituted a violation of Plaintiffs' civil rights provided to him under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986 and the laws and Constitution of the State of New York

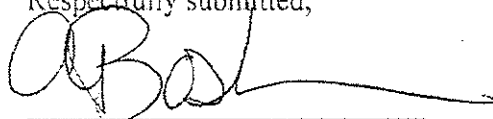
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

1. A monetary sum that exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction herein;
2. The costs and disbursements of this action; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
May 15, 2014

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'ABal', with a long horizontal flourish extending to the right.

Alissa Boshnack, Esq.

Fisher, Byrialsen & Kreizer, PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, New York 10007
(212) 962-0848

VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

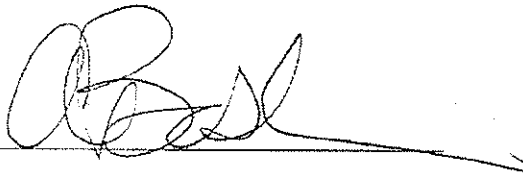
That deponent is the attorney of record for Plaintiffs in the within action; that deponent has read the foregoing Summons and Verified Complaint and knows the contents thereof; that the same is not true to deponents own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this Verification is made by deponent and not by the Plaintiffs is that Plaintiffs both reside in a county other than that in which deponent maintains her offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which she has made or has caused to be made concerning the subject matter of this action, and the statements of parties and/or witnesses herein.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York

May 15, 2014

A handwritten signature in black ink, appearing to read 'Alissa Boshnack', written over a horizontal line.

Alissa Boshnack, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

STEVEN RIVERA AND JABAR HICKS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER ALEX CLAUDIO, and POLICE
OFFICERS JOHN DOES, individually and in their official capacities,

Defendants.

VERIFIED COMPLAINT

FISHER, BYRIALSEN & KREIZER, PLLC

Attorneys for: Plaintiffs

STEVEN RIVERA and JABAR HICKS

291 Broadway, Suite 709

New York, NY 10007

(212) 962-0848

Service of a copy of the within is hereby admitted

Dated:
